Record Keeping

Policy Statement

Every care service is required to have systems and methods for keeping records that comply with data protection laws and its registration conditions.

This policy is intended to set out the values, principles and policies underpinning Hadsul Limited's approach to record keeping, data protection and access to records.

The policy should be read and used in relation to policies on:

a. **Data Protection**
b. **Service Users' Access to Records**
c. **Confidentiality of Service Users' Information.**

Hadsul Limited works to the following principles of good record keeping.

1. Records required for the protection of service users and for the effective and efficient running of Hadsul Limited are maintained, are up to date and are accurate.
2. Service users have access to their records and information about them held by the Hadsul Limited, as well as opportunities to help maintain their personal records.
3. Individual records and Hadsul Limited records are kept in a secure fashion, are up to date and in good order, and are constructed, maintained and used in accordance with the Data Protection Act 1998, current registration regulations and related policies on Confidentiality, Data Protection, Access to Records and Security.

Data Protection

See the **Data Protection Policy**.

Access to Records

Hadsul Limited believes that access to information and security and privacy of data is an absolute right of every service user and that service users are entitled to see a copy of all personal information held about them and to correct any error or omission in it.

See the **Service Users' Access to Records Policy**.

Procedures

Staff must do the following.

1. Ensure that all files or written information of a confidential nature are stored in a secure manner and are only accessed by people who have a need and a right to access them. (Where a service user keeps their own records at home the manner of safe storage is discussed with the person concerned and/or where appropriate, their relatives. Confidentiality aspects are discussed as part of the process. See separate policy on Records Kept in Service Users' Homes).
2. Be aware that the relatives of a service user do not have any automatic right of access to that service user's files and need to have the service user's permission to see any information on that person. If the service user lacks the mental capacity to give their permission a "best interests" procedure would then need to be followed in line with the Mental Capacity Act 2005. (See also the Service Users' Access to Records, Confidentiality and Data Protection policies.)
3. Ensure that all files or written information of a confidential nature are not left where they can be read by unauthorised people.
4. Wherever practical or reasonable fill in all care records and service users' notes in the presence of and with the co-operation of the person concerned.
5. Ensure that all care records and service users' notes, including care plans, are signed and dated.
6. Check regularly on the accuracy of data being entered into computers.
7. Always use the passwords provided to access the computer system and not abuse them by passing them on to people who should not have them.
8. Use computer screen blanking to ensure that personal data is not left on screen when not in use.

Personal data relating to service users or staff should not be kept or transported on laptops, USB sticks, or similar devices, unless authorised by the Hadsul Limited manager. Where personal data is recorded on any such device it should be protected by:

a. Ensuring that data is recorded on such devices only where absolutely necessary;
b. Using an encrypted system — a folder should be created to store the files that need extra protection and all files created or moved to this folder should be automatically encrypted; and,
c. Ensuring that laptops or USB drives are not left lying around where they can be stolen.

Retention of Records

All records are kept in line with the requirements of the current legislation and guidance. Service users' personal records are always kept for a minimum of three years from the date of the last entry after they leave Hadsul Limited or after their death.

Training

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All new staff receive training on Hadsul Limited's approach to record keeping as part of their induction and Care Certificate training.

All training, including induction training, is in line with the guidance and standards produced by the relevant social and health care workforce development organisations.

All staff receive up-to-date training on data protection principles, access to records procedures, confidentiality and good practice in entering information on service users' records.

The nominated data user/data controller for Hadsul Limited receives training in the Data Protection Act 1998.

All staff who use the Hadsul Limited's computers receive training to develop the required skills and to know how to keep electronic data safe and secure.

Policy Reviewed	Signed	Next Review
MAY 2025	Zam Namakula	MAY 2026

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